# Terms of Service - Existing Customers

*Effective May 3, 2022*

## Using Postmark Means Accepting these Terms

These Terms of Service (the “Terms”), in conjunction with our Privacy Policy and the Data Processing Addendum incorporated herein by this reference (the “DPA”), are the entire Agreement between AC PM, LLC (“AC PM” or “We”) and you (“You” or the “User”). These Terms govern Your use of the postmarkapp.com web site (the “Site”), the Postmark web application and/or the Postmark services (collectively, the “Service”).

By using the Service, You are acknowledging that You have read and have agreed to these Terms, so please read them carefully. We may need to update these Terms from time to time. Unless otherwise required by law, we will notify you before we make such changes and give you an opportunity to review them before they go into effect. Once any updated Terms are in effect, you will be bound by them if you continue to use the Service. If you do not agree to our updated Terms, you can delete your account at any time.

## Communications

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You acknowledge and agree that AC PM may send You e-mails related to your account and/or the Service. Shocking, we know. You agree that AC PM, LLC can use your company name or logo in its advertising unless and until you tell us in writing not to.

## Accounts, Passwords and Security

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You must be a registered User to access the Service. You are responsible for keeping Your password secure, and You are solely and strictly liable for any activity that occurs under Your user name. You also agree not to access, or attempt to access, other User's accounts and/or data — You wouldn't want anyone doing that to You, right?

## Acceptable Use and Conduct

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Email Service Providers (ESPs) like Postmark are unique in that we are only as good as the reputation and sending practices of our customers. A single bad actor can take down a good portion of an ESP's reputation, but it takes everyone as a whole to create an exceptional reputation over time. So a big part of our delivery efforts is spent in the area of encouraging good email behavior on our platform, and preventing bad emailers from messing things up for everyone. To put it another way: **our reputation depends on the quality of our customers.**

It is with that as background that we put together this Acceptable Use Policy. To make sure that we keep our platform safe and our deliverability high, there are certain types of senders and behaviors that we don't allow. The purpose of this document is to make our platform's rules as clear as possible, and to help you understand why Postmark may not be a good fit for you. Hate to say it, but if we don't think you are following the rules, we may terminate your account.

## Email types that we don't allow on Postmark

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This should go without saying, but you can't use Postmark to do or promote anything illegal. There are other industries that aren't illegal, but tend to generate a lot of spam complaints.

To be specific, we may not allow the following businesses or types of services to use Postmark:

- Emails offering to sell illegal goods or services
- Emails that violate CAN-SPAM Laws
- Pornography/sexually explicit content
- Escort services
- Pharmaceutical products
- Gambling services or products
- Multi-level marketing
- Affiliate marketing
- Make money online opportunities
- Credit repair and get out of debt opportunities
- Short-term / payday loan services
- List brokers or list rental services
- Selling "Likes" or followers for a social media platform
- Other emails that we find, in our sole discretion, hurt our reputation or our deliverability

## Other things you can't do on Postmark

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In addition to the content guidelines above, there are a few other things we expect from our customers once you start sending with Postmark, regardless of your industry:

- **Your spam complaint rate has to be lower than 1 in 1,000 emails (0.1%)**. If you exceed this limit your account might get paused while we work with you to figure out what's going on.
- **Your bounce rate has to be lower than 10% of all emails sent**. Anything higher than that and inbox providers will start to think that you're sending to poorly qualified recipients.

## Appropriate Email Practices

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All email lists contained and/or used with respect to the Service must be permission-based subscriptions. Use of a list that has been purchased or rented from a third party is prohibited.

It is Your responsibility to monitor and maintain unsubscribe requests for Your list that are outside of the functionalities of the Service. Emails sent unsolicited will receive abuse complaints that will be reflected on Your account. It is Your responsibility to maintain abuse results lower than the industry standard.

We reserve the right to terminate your account for, among any other reason in our sole discretion, violation of the provisions of this section.

## Federal Regulation Compliance

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You must comply with all applicable law and regulations in Your use of the Service, including but by no means limited to complying with the CAN-SPAM federal regulations. This includes, but is not limited to, Your obligation to provide an unsubscribe link on Your emails.

## License

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Our Service and the text, graphics, images, photographs, videos, illustrations, trademarks, trade names, service marks, logos, slogans and other content contained therein (collectively, the “AC PM Content”) are owned by or licensed to AC PM and are protected under both United States and foreign laws. Except as explicitly stated in these Terms, AC PM and our licensors reserve all rights in and to our Service and the AC PM Content. You are hereby granted a limited, nonexclusive, nontransferable, non-sublicensable, revocable license to access and use our Service in accordance with the Terms.

## Fees

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### For customers on plan-based billing:

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If you are not satisfied with the service, AC PM will issue a refund for your first purchase within 30 days of that purchase. Subsequent purchases are not eligible for refunds. At the end of each billing period the plan contract will automatically renew indefinitely until explicitly cancelled by the User. Cancellation must be issued via the Service.

Any unused emails from the email quota included in the chose plan expire at the end of the month, and do *not* roll over to subsequent periods.

### For customers on credit-based billing:

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If you are not satisfied with the Service, AC PM will issue a refund for any unused Postmark credits from your first purchase within 90 days of that purchase. Subsequent

purchases are not eligible for refunds. Your credits to send emails will never expire. Users are able to opt-in to recurring billing at a level set by the User. At the end of the contract term, when credits run out, the contract will automatically renew indefinitely until explicitly cancelled by the User.

Cancellation must be issued via the Service. Any cancellation issued must be done three (3) days prior to the end of the contract term to allow for adequate processing time.

### Chargeback/Refund Policy

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Eligible refunds will be issued to the credit card that was used to make the credit purchase, according to the refund policy described in the “Fees” section. AC PM will not issue cash refunds under any circumstances. If You have a question about charges made to Your account, please contact AC PM immediately. If the charges were made in error, AC PM will credit your account for the appropriate amount. AC PM has a zero tolerance policy for chargebacks. Any customer who disputes a credit card payment that is found to be valid will be permanently banned from using the Service.

## DISCLAIMER OF WARRANTIES

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**WE HAD TO MAKE THIS CONSPICUOUS BECAUSE OUR LAWYERS SAID SO. THE SERVICE IS PROVIDED “AS IS” AND YOU USE IT AT YOUR OWN RISK. AC PM EXPRESSLY DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION THE IMPLIED WARRANTY OF MERCHANTABILITY, THE IMPLIED WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE AND THE WARRANTY OF NON-INFRINGEMENT.**

**WE TRY TO KEEP THE SERVICE BUG-FREE AND SAFE, BUT AC PM DOES NOT WARRANT OR ENSURE CONTINUOUS, ERROR-FREE, SECURE OR VIRUS- FREE**

**OPERATION OF THE SERVICE OR YOUR ACCOUNT. YOU UNDERSTAND AND AGREE THAT YOU SHALL NOT BE ENTITLED TO MAKE ANY CLAIM BASED ON AC PM'S FAILURE, IRRESPECTIVE OF FAULT, TO PROVIDE ANY OF THE FOREGOING. LIKE WE SAID, YOU USE THE SERVICE AT YOUR OWN RISK.**

**WITHOUT LIMITING THE FOREGOING, THE SERVICE IS NOT DESIGNED OR LICENSED FOR USE IN HAZARDOUS ENVIRONMENTS REQUIRING FAIL- SAFE CONTROLS, INCLUDING WITHOUT LIMITATION OPERATION OF NUCLEAR FACILITIES, AIRCRAFT NAVIGATION/COMMUNICATION SYSTEMS, AIR TRAFFIC CONTROL, AND LIFE SUPPORT OR WEAPONS SYSTEMS. IF SOMEONE'S LIFE OR THE FATE OF THE FREE WORLD DEPENDS ON YOUR USE OF THE SERVICE, PLEASE DO NOT USE THE SERVICE.**

**SOME JURISDICTIONS DO NOT ALLOW THE DISCLAIMER OF PARTICULAR WARRANTIES, AND, TO THAT EXTENT, THE FOREGOING DISCLAIMERS MAY NOT APPLY TO YOU. TO THE EXTENT THAT YOU LIVE IN A JURISDICTION THAT REFUSES TO ENFORCE THE FOREGOING DISCLAIMERS, AC PM DISCLAIMS ALL WARRANTIES, EXPRESS AND IMPLIED, TO THE EXTENT PERMITTED BY LAW.**

## LIMITATION OF LIABILITY

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**IN NO EVENT WILL AC PM BE LIABLE TO THE USER OR THIRD PARTIES FOR ANY DAMAGES, INCLUDING BUT NOT LIMITED TO DIRECT, INDIRECT, SPECIAL, INCIDENTAL, EXEMPLARY, CONSEQUENTIAL OR PUNITIVE DAMAGES (INCLUDING BUT NOT LIMITED TO LOSS OF USE, BUSINESS INTERRUPTION, LOSS OF PROFITS OR LOSS, CORRUPTION AND/OR ALTERATION OF DATA) ARISING OUT OF OR IN ANY WAY RELATED TO YOUR DATA AND/OR YOUR USE OF THE SERVICE AND/OR YOUR ACCOUNT, WHETHER IN AN ACTION IN CONTRACT, TORT, EQUITY OR OTHERWISE.**

**USER VOLUNTARILY ENGAGES IN THE ACTIVITY OF INTERNET USE AND BEARS THE RISKS ASSOCIATED WITH THAT ACTIVITY. YOU WILL BE SOLELY RESPONSIBLE FOR ANY DAMAGE DONE TO YOUR COMPUTER OR YOUR DATA THAT RESULTS FROM SUCH ACTIVITY. IN NO EVENT WILL AC PM HAVE ANY**

**LIABILITY TO YOU OR ANY THIRD PARTY FOR UNAUTHORIZED ACCESS TO OR USE, ALTERATION, CORRUPTION, THEFT OR DESTRUCTION OF YOUR DATA AND/OR YOUR ACCOUNT.**

**AC PM'S LIABILITY IS EXPRESSLY LIMITED FOR ANY REASON AND UPON ANY CAUSE OF ACTION TO THE AMOUNT YOU ACTUALLY PAID, IF ANY, BY YOU TO AC PM FOR THE SERVICE DURING THE THREE MONTHS IMMEDIATELY PRECEDING THE DATE ON WHICH YOU CLAIM THE CAUSE OF ACTION ACCRUED.**

**SOME JURISDICTIONS' LAWS PROHIBIT THE FOREGOING LIMITATION OF LIABILITY PROVISION. TO THE EXTENT THAT YOU LIVE IN A JURISDICTION THAT REFUSES TO ENFORCE THE FOREGOING PROVISION, AC PM'S LIABILITY IS LIMITED TO THE GREATEST EXTENT ALLOWED BY THE LAW OF THAT JURISDICTION.**

## Indemnification

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To the fullest extent permitted by applicable law, You agree to indemnify, defend and hold harmless AC PM from all damages, liabilities, claims and expenses, including without limitation attorneys' fees and costs, arising from or related to Your data, Your use of the Service and/or any breach of these Terms by You. You further agree to defend, indemnify and hold harmless AC PM from all damages, liabilities, claims and expenses, including without limitation attorneys' fees and costs, arising from or related to any claims by third parties that Your data or Your use of the Service infringes upon, violates or misappropriates any of their Intellectual Property Rights or discloses their Proprietary Information. You agree to promptly notify AC PM of any third party claims, cooperate with AC PM in defending such claims and pay all fees, costs and expenses associated with defending such claims (including, but not limited to, attorneys’ fees). You also agree that AC PM will have control of the defense or settlement of any third party claims.

## Release

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To the fullest extent permitted by applicable law, you release AC PM from responsibility, liability, claims, demands, and/or damages (actual and consequential) of every kind and nature, known and unknown (including, but not limited to, claims of negligence), arising out of or related to disputes between users and the acts or omissions of third parties. **You expressly waive any rights you may have under California Civil Code § 1542 as well as any other statute or common law principles that would otherwise limit the coverage of this release to include only those claims which you may know or suspect to exist in your favor at the time of agreeing to this release.**

## Termination of Service

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We reserve the right, without notice and in our sole discretion, to terminate Your account at any time and for any reason. Accordingly, We may, but have no obligation to, remove accounts and content containing what We determine, in our sole discretion, to be unlawful, offensive, threatening, defamatory, obscene or otherwise objectionable material. In the event of termination, You will lose all data related to Your Account. An account terminated by AC PM will not be backed-up for any reason and will be immediately terminated from AC PM's servers, and will not be eligible for any refunds of monies paid. You may terminate Your account at any time, and if eligible, AC PM will issue refunds of monies paid for unused credits according to the refund policy set aside in the “Fees” section. AC PM is not responsible for any loss or harm related to your inability to access or use the Service.

## Intellectual Property

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AC PM claims no intellectual property rights over the data You provide to the Service.

You acknowledge and agree that AC PM owns all right, title and interest in and to the Service, including without limitation all intellectual property rights. You agree that You will not copy, reproduce, alter, reverse engineer, clone, or modify the Service or create derivative works from the Service.

## Force Majeure

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Neither party shall be responsible for any failure to perform, or delay in performing any of its obligations under these Terms, where and to the extent that such a failure or delay results from causes outside the control of such party. Such causes shall include, without limitation, failures caused by a third-party service, acts of God or of the public enemy, acts of the government in its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, freight embargoes, strikes, civil commotion or the like.

## Dispute Resolution by Arbitration

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**YOU AGREE THAT THE SOLE AND EXCLUSIVE FORUM AND REMEDY FOR ANY AND ALL DISPUTES AND CLAIMS RELATING IN ANY WAY TO OR ARISING OUT OF THESE TERMS, THE SITE AND/OR THE SERVICE SHALL BE FINAL AND BINDING ARBITRATION,** except that: (a) either of us may seek injunctive relief in state or federal court located in Cook County, Illinois concerning infringement, misappropriation or other violation by either of us of the other party's Intellectual Property Rights, and (b) AC PM may seek injunctive relief in state or federal court located in Cook County, Illinois concerning violation by a User of any of these Terms, and in both such cases (a) and (b), the parties acknowledge that arbitration is not an adequate remedy at law and that injunctive or other appropriate relief may be sought.

Arbitration under this Agreement shall be conducted by the American Arbitration Association (the **"AAA"**) under its Commercial Arbitration Rules and, in the case of consumer disputes, the AAA's Supplementary Procedures for Consumer Related Disputes ( the **"AAA Consumer Rules"**) (collectively the **"AAA Rules"**). The location of the arbitration shall be in Chicago, Illinois, and the allocation of costs and fees for such arbitration shall be determined in accordance with such AAA Rules and shall be subject to the limitations provided for in the AAA Consumer Rules (for consumer disputes). The arbitrator's award shall be binding and may be entered as a judgment in any court of competent jurisdiction.

To the fullest extent permitted by applicable law, **YOU AND AC PM AGREE THAT EACH MAY BRING CLAIMS AGAINST THE OTHER ONLY IN YOUR OR ITS INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS OR REPRESENTATIVE PROCEEDING, AND THAT NO ARBITRATION OR CLAIM UNDER THESE TERMS OF SERVICE SHALL BE JOINED TO ANY OTHER ARBITRATION OR CLAIM, INCLUDING ANY ARBITRATION OR CLAIM INVOLVING ANY OTHER CURRENT OR FORMER USER OF THE SERVICE. IN NO EVENT SHALL ANY CLAIM, ACTION OR PROCEEDING BY YOU RELATED IN ANY WAY TO THE SERVICE (INCLUDING YOUR USE OF THE SERVICE) BE INSTITUTED MORE THAN ONE (1) YEAR AFTER THE CAUSE OF ACTION AROSE.**

## Choice of Law

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You agree that all disputes or proceedings related in any way to or arising from Your use of the Service shall be governed, without respect to conflict of law principles, by the laws of the State of Illinois; provided, however, that any disputes or proceedings arising under the DPA shall be governed by its terms, including with respect to choice of law and jurisdiction.

## Statute of Limitations

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You agree that regardless of any statute or law to the contrary, any claim or cause of action that you may wish to assert related in any manner to the Service must be filed within one (1) year after such claim or cause of action accrued or be forever barred.

Users with questions about this Agreement or the Privacy Policy may contact AC PM at privacy@activecampaign.com 1 N Dearborn Street, Suite 500, Chicago, IL 60602.

View the incorporated Data Processing Addendum (DPA) here.

## Severability

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If any provision or part of a provision of these Terms is unlawful, void or unenforceable, that provision or part of the provision is deemed severable from these Terms and does not affect the validity and enforceability of any remaining provisions.

## Miscellaneous

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These Terms constitute the entire agreement between you and AC PM relating to your access to and use of the Service. Any additional or different terms proposed by you in any purchase order, request for proposal or other document are hereby objected to by AC PM and shall be void. The failure of AC PM to exercise or enforce any right or provision of these Terms will not operate as a waiver of such right or provision. The section titles in these Terms are for convenience only and have no legal or contractual effect. Except as otherwise provided herein, these Terms are intended solely for the benefit of the parties and are not intended to confer third party beneficiary rights upon

any other person or entity. These Terms may not be assigned or transferred by you except with our prior written consent. These Terms may be executed and delivered electronically and in one or more counterparts, each of which shall, when taken together, constitute a single document.